PEMBROKESHIRE CLIMBING CLUB

Constitution



Constitution of Pembrokeshire Climbing Club

1. Name

The name of the club is the Pembrokeshire Climbing Club (hereafter referred to as the Club).

2. Objectives

The objectives of the Club are to:

a. Ensure the activities of rock climbing, mountaineering, hillwalking and indoor climbing are the core activities of the Club.

b. Promote the interests of rock climbing, mountaineering and hill walking amongst Members.

c. Provide an opportunity for Members to meet and participate in the activities together.

d. Act on behalf of the interests of the Members.

e. Promote awareness of the need to maintain access, conservation and protection of the cliff and mountain environment.

f. Take part in and support the work and activities of the British Mountaineering Council (the BMC).

3. Application of Income and Property

The income and property of the Club shall be applied solely towards the promotion of the Club's objectives (see point 2).

4. Membership

4.1. Membership of the Club is open to:

a. All persons irrespective of ethnicity, nationality, sexual orientation, religion or beliefs; or of age, sex or disability.

b. The Committee will only refuse membership for good and sufficient cause, such as conduct or character likely to bring the Club or sport into disrepute.

c. Individuals who recognise that the activities of the club may involve risk of personal injury or death. Members shall be aware of and accept these risks and agree to be responsible for their own actions and involvement and understand the implications their own actions may have on others.

d. Adults of 18 years and above and the children of members.

4.2. All Members acknowledge and agree that they will become Club Members of the BMC and that the Club shall pay the appropriate subscription on behalf of each Member included in the return filed by the Club with the BMC, and, in the event of the BMC being wound up, shall pay the sum of not more than £1 on behalf of each Member included in the return filed by the Club with the BMC at any time within the preceding period of one year pursuant to the guarantee set out in the BMC's articles of association (the Articles). The Members further acknowledge and agree that upon the Club being

affiliated to the BMC and each becoming a Club Member of the BMC, they will be bound by the Articles.

4.3. All Members will be subject to the terms of this Constitution and by joining the Club will be deemed to accept these terms and any codes of practice or Club rules that the Club adopts.

4.4. Members will pay membership fees, as determined at the AGM (defined below).

4.5. Membership of the Club will cease if the Member concerned:

a. Gives written notice of resignation to the Club; or

b. Is removed from the membership by a resolution passed by a unanimous decision of the Committee on the grounds that they have acted in a way which brings the Club into disrepute or failed to abide by this Constitution or the club rules; or

c. Is removed from the membership by a resolution passed by a majority of members at a general meeting on the grounds that they have acted in a way which brings the Club into disrepute or failed to abide by the rules of this Constitution or club rules.

4.6. Membership of the Club is not transferable.

4.7. On ceasing to be a Member a person forfeits all right to and claim upon the Club and its property and funds.

4.8. A person who has been removed from the membership in accordance with clause 4.5.b or 4.5.c shall not be entitled to participate in any subsequent activity of the Club.

4.9. All Adult Members must complete an application form that includes a participation statement. In doing so, individuals shall recognise that climbing and mountaineering are activities with a danger of personal injury or death. Members shall be aware of and accept these risks and agree to be responsible for their own actions and involvement.

4.10. Family Members under the age of 18 attending any indoor or outdoor meet must be under the direct supervision of their parent, legal guardian or an adult member nominated by them.

4.11. Adult Members acting in loco parentis, supervising children under 18, must first obtain written parental consent.

4.12. Student Membership will be open to any person between the ages of 18 and 25 who is in full-time education, subject to the presentation of a valid student card. The membership fee will not be more than 80% of the full Adult Member rate. A Student Member will be subject to the same rules and will have the same benefits as a Full Adult Member.

4.13. Honorary life membership may be awarded to an existing Member in recognition of outstanding contributions to the success of the Club or to climbing or mountaineering in general, or to a long-standing member of the Club. To be made an Honorary Life Member an existing Member must be proposed by one Club Member and seconded by another and must be approved by a majority at the Annual General Meeting or at an Extraordinary General Meeting.

5. Inclusivity

5.1. The Club respects the rights, dignity and worth of every person and will treat all Members equally within the context of the Activities regardless of age, ability, gender, sex, race, ethnicity, religious belief, sexuality or social/economic status.

5.2. The Club is committed to all Members having the right to enjoy the Activities in an environment free from the threat of intimidation, harassment and abuse.

5.3. All Members have a responsibility to oppose discriminatory behaviour and promote equality of opportunity.

5.4. The Club will deal with any incidence of discriminatory behaviour seriously, according to Club disciplinary procedures.

6. Finances

6.1. Membership fees will be set annually and agreed by the Members at the AGM.

6.2. The Treasurer (as defined in clause 12.3.b) will be responsible for the finances of the Club.

6.3. The financial year of the Club will run from 1st September to 31st August.

6.4. All Club monies will be banked in an account held in the name of the Club.

6.5. The Committee will nominate a minimum of two Officers as signatories for the Club account, the signatories must include the Treasurer.

6.6 All members shall be jointly and severally responsible for the financial liabilities of the Club.

6.7. Any credit agreement made by the club must be approved by Members at an AGM or EGM.

7. General Meetings

7.1. The Club shall in each calendar year hold a general meeting as its annual general meeting (AGM), in addition to any other general meetings in that year and shall specify the meeting as such in the notice calling it.

7.2. All general meetings other than the AGM shall be called Extraordinary General Meetings (EGM).

7.3. The Committee (as defined in clause 12.1) may call an EGM at any time.

7.4. The Committee must call an EGM if requested to do so in writing by not less than one quarter of the Members. The request must state the nature of the business that is to be discussed. If the Committee fails to hold the meeting within 28 days of the request, the Members may proceed to call an EGM but in doing so they must comply with the provisions of this Constitution.

7.5. At each AGM the following business will be conducted:

a. Approval of the minutes from the previous year's AGM.

b. An annual report from the Committee will be presented

c. An annual report from the Treasurer together with the accounts of the Club for the previous year will be presented together with proposed membership fees for the following year.

d. The membership fees for the following year will be agreed.

e. The election or re-election of Committee members as appropriate.

f. All other relevant business will be dealt with.

8. Notice

8.1. The minimum period of notice required to hold any general meeting of the Club is 21 clear days from the date on which the notice is deemed to have been given.

8.2. A general meeting may be called by shorter notice if it is so agreed by all the Members entitled to attend and vote.

8.3. The notice must specify the date, time, means and place of the meeting and the general nature of the business to be transacted. If the meeting is to be an AGM, the notice must say so.

8.4. The notice must be given to all Members.

8.5 Members proposing resolutions and items for discussion at the AGM must do so in writing at least 14 full days prior to the meeting, giving time for these to be circulated to all members.

8.6 Members may raise further items for discussion at the AGM, but any decisions and votes taken will be regarded as indicative and not binding on the Committee until ratified at a subsequent AGM or EGM, ensuring all members have the opportunity to consider them too.

9. Quorum

9.1. No business shall be transacted at any general meeting unless a quorum is present.

9.2. A quorum is either 15 Members entitled to vote upon the business to be conducted at the meeting or 25% of the total membership at the time, whichever is the lesser.

9.3. If a quorum is not present within 15 minutes from the time appointed for the meeting or during a meeting a quorum ceases to be present the meeting shall be adjourned to such time and place as the Committee shall determine.

9.4. The Committee must re-convene the meeting and must give at least 7 clear days notice of the re-convened meeting stating the date and time and place of the meeting.

9.5. If no quorum is present at the re-convened meeting within 15 minutes of the time specific for the start of the meeting, the Members present at that time shall constitute the quorum for that meeting.

10. Chair of General Meetings

10.1. General meetings shall be chaired by the Chair (as defined in clause 12.3.a below).

10.2. If there is no such person or they are not present within 15 minutes of the time appointed for the meeting an Officer nominated by the Members present shall chair the meeting.

11. Voting and Proposals at General Meetings

11.1. Proposals may be put to a general meeting of the Club by any Member (see 8.5 and 8.6).

11.2. All proposals at general meetings shall be decided by a simple majority of votes cast, except proposals to amend this Constitution or to dissolve the Club which shall require not less than two thirds of the Members present at the meeting to vote in favour.

11.3. Each Member aged 16 years and above shall have one vote.

11.4. In the event of an equal number of votes for and against any proposal, the Chair shall have a casting vote.

12. Officers and Committee Members

12.1. The overall management and control of the Club shall be managed and administered by a committee comprising the Officers as defined below.

12.2. The minimum number of members of the Committee shall be three, including a Chair, Secretary and Treasurer.

12.3. A Committee Member may be designated more than one role and/or more than one title.

12.4. The Committee may include the following officers:

a. Chair
b. Treasurer
c. Secretary
d. Safeguarding officer
e. Membership Secretary
f. Safety/Equipment Officer
g. Members' Representative
h. Social Secretary
i. Social Media Officer
J. Other officers as determined by the committee and approved at the AGM/ EGM

12.4. A Committee member must be a member of the club and must be 18 years of age or above.

13. Appointment of Committee Members

13.1. The Club in a general meeting shall elect the Officers.

13.2. Each of the Officers, however appointed, shall retire with effect from the conclusion of the next AGM after their appointment but shall be eligible for re-election at that AGM.

13.3. A Member may be elected an Officer at any AGM by:

a. The Club being given written notice prior to the AGM that the member wishes to stand as a committee member, accompanied by the names of a proposer and seconder.
b. A Member being nominated for election from the floor of the AGM.

13.4. If the post of any Officer should fall vacant after an AGM, the Committee shall have the power to co-opt a Member to fill the vacancy until the succeeding AGM. In addition, the Committee may co-opt additional non-voting members throughout the year if this is deemed in the best interests of the Club.

13.5. Other than in exceptional circumstances, Officers standing down from their duties are expected to provide a comprehensive handover of the role, including any transfer of ownership or access procedures, documents and/or data, to the satisfaction of the incoming officer and The Committee.

14. Powers

14.1. To further its Objectives the Committee must manage the business of the Club and has the following powers:

a. To obtain and pay for such goods and services as are necessary for carrying out the work of the Club.

b. To collect the membership fees payable.

c. To open and operate such bank and other accounts as the Committee considers necessary.

d. To set aside funds for special purposes or as reserves against future expenditure.

e. To adopt new policies or codes of practice that affect the organisation of the Club.

f. To introduce, withdraw or modify Club Rules as they see fit. These rules will be subject to the scrutiny and ratification of the Annual General Meeting or Extraordinary General Meeting.

f. To set subscription levels on an annual basis. Subscription levels should not act as a significant obstacle to persons wishing to join the Club and should be subject to the scrutiny and ratification of the Annual General Meeting.

g. In the event of the resignation of any Officer or Member Representative a temporary officer may be appointed by the Committee until the next AGM.

h. The Committee shall be responsible for clarifying and/or varying the responsibilities of Officers. The 'Committee Members Roles and Responsibilities' will be reviewed and updated ona regular basis.

i. The Committee shall be responsible for considering the appropriateness of any suggested charitable donations and the amount to be donated. Any such donations will form part of the Annual Report presented at the AGM, for scrutiny by the membership.

j. The Committee will have the power to co-opt additional, nonvoting members, as required and deemed in the best interests of the club.

k. To do any other lawful things which are necessary or desirable for the achievement of the Objectives.

15. Disqualification and Removal of Committee Members

A Committee member shall cease to hold office if they:

a. Cease to be a Member; or

b. Resign as a Committee member by written notice to the Club; or

c. Are removed as a Committee member by a resolution passed by a majority of the Committee members on the grounds that they have acted in a way which brings, or is likely to bring the Club in to disrepute or they have failed to abide by the rules of this Constitution.

16. Proceedings of the Committee

16.1. The Committee shall hold at least six meetings each year.

16.2. Questions and issues arising at a meeting must be decided by a majority of votes.

16.3. Each Committee member shall have one vote. In the event of an equality of votes, the person chairing the meeting shall have a casting vote.

16.4. No decision may be made by a meeting of the Committee unless a quorum is present at the time the decision is purported to be made.

16.5. The quorum shall be not less than 50% of the elected Officers.

16.6. A Committee member shall not be counted in the quorum present when any decision is made about a matter upon which that Committee member is not entitled to vote (see 17.1).

16.7. If the number of Committee members is less than the number fixed as the quorum, the continuing Committee member(s) may act only for the purpose of filling vacancies or of calling a general meeting.

16.8. The person elected as the Chair shall chair meetings of the Committee.

16.9. If the Chair is unwilling to preside or is not present within ten minutes after the time appointed for the meeting, the Committee members present may appoint one of their number to chair that meeting.

16.10. All or any of the Committee members may participate in meetings via conference call facilities or other virtual means. A Committee member participating remotely shall be deemed to be present in person at the meeting and shall be entitled to vote and be counted in a quorum accordingly.

16.11. A resolution in writing signed by all the Committee members entitled to receive notice of a meeting of the Committee and to vote upon the resolution shall be as valid and effectual as if it had been passed at a meeting of the Committee duly convened and held.

16.12. The resolution in writing may comprise several documents containing the text of resolution in like form each signed by one or more Committee members and may be in electronic form.

17. Conflicts of Interest

17.1. A Committee member must:

a. Declare the nature and extent of any interest, direct or indirect, which they have in a proposed transaction or arrangement with the Club or in any transaction or arrangement entered in to by the Club which has not been previously declared; and

b. Absent themselves from any discussion of the Committee in which it is possible that a conflict will arise between their duty to act solely in the interest of the Club and any personal interest (including but not limited to any personal financial interest).

17.2. Any Committee member absenting themselves from any discussion in accordance with clause 17.1.b must not vote or be counted as part of the quorum in any decision of the Committee on the matter.

18. Delegation

18.1. The Committee may delegate any of their powers or functions to a group of two or more Committee members OR Members but the terms of any such delegation must be recorded in the meeting minutes where such delegation was approved.

18.2. The Committee may impose conditions when delegating, including the conditions that:

a. The relevant powers are to be exercised exclusively by the group to whom they delegate; and

b. No expenditure may be incurred on behalf of the Club except in accordance with a budget previously agreed with the Committee.

18.3. The Committee may revoke or alter a delegation.

18.4. All acts and proceedings of any groups must be fully and promptly reported to the Committee.

19. Grievance, Discipline and Appeals

19.1. All complaints regarding the behaviour of Members should be presented and submitted in writing to the Secretary–see Grievance, Discipline and Appeals procedure.

19.2. Anominated sub-group will meet to hear complaints within 21 days of a complaint being lodged. The nominated sub-group has the power to take appropriate disciplinary action including the termination of membership.

19.3. The outcome of a grievance, disciplinary hearing should be notified in writing to the person who lodged the complaint and the Member against whom the complaint was made within14 days of the hearing.

19.4. There will be the right of appeal to the Committee following disciplinary action being announced. The Committee should consider the appeal within 14 days of the Secretary receiving the appeal.

19.5. There will be the right of appeal to a specially formed sub-group following disciplinary action being announced. The sub-group should consider the appeal within 14 days of the Secretary receiving the appeal.

20. Subscriptions

20.1. Subscriptions shall be paid yearly, with membership subscriptions running from 1st January until 31st December.

20.2. Members whose subscription is unpaid as at 28th February will forfeit their membership of the Club.

20.3. Any Member joining after 1st July will be entitled to a 50% discount on Membership until 31st December.

20.4. Any Member joining after 1st November will either pay half of the current annual membership fee or will pay 100% of the following year's annual fee and have their membership period extended to 31st December of the following year (i.e. up to 14 months membership).

20.5. Student Members will be required to pay no more than 80% of the full adult membership.

20.6. No fee shall be payable by Honorary Members.

21. Meets

21.1. New members and under 18s must attend the Club's early evening indoor sessions unless deemed competent or at the discretion of the Safety Officer.

21.2. Attending outdoor sessions will not be permitted unless the Member has attended a Club abseiling session or at the discretion of the Safety Officer.

22. Liability

22.1. The Club will not accept liability for any injury to Members or third parties, or loss or damage to Member's or third party's property or equipment.

23. Dissolution

23.1 If the Committee resolve that the Objectives of the Club can no longer be fulfilled, the Management Committee will convene an EGM of the Club to consider the winding up and dissolution of the Club.

23.2 Any liabilities at the time of dissolution shall be the joint responsibility of all Voting Members if the assets of the Club are not sufficient.

23.3 If the Club is dissolved and after all of its debts and liabilities have been satisfied there remains any property or assets these shall not be paid or distributed amongst the Members, but shall be applied in one or more of the following ways:

a. Donating them to charity (e.g. Mountain Rescue, Mountain Heritage Trust, BMC Access & Conservation Trust) or

b. Transferring them to another organisation with similar aims to the Objectives]